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No. 95-354

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In The
Supreme Court of the United States
October Term, 1995

JAMES O'CONNOR,

Petitioner,

v.

CONSOLIDATED COIN CATERERS CORPORATION,

Respondent.

On Writ Of Certiorari To The
United States Court Of Appeals
For The Fourth Circuit

BRIEF AMICUS CURIAE OF THE
NATIONAL RETAIL FEDERATION
IN SUPPORT OF RESPONDENT

JACK L. WHITACRE*
DENISE DRAKE CLEMOW
SPENCER FANE BRITT & BROWNE
1400 Commerce Bank Building
1000 Walnut
Kansas City, MO 64106
(816) 474-8100

Counsel for *Amicus Curiae*
National Retail Federation

* Counsel of Record

26 PP

TABLE OF CONTENTS

	Page
INTERESTS OF <i>AMICUS CURIAE</i>	1
SUMMARY OF ARGUMENT.....	2
ARGUMENT	3
I. IN ASSESSING WHETHER PLAINTIFF ESTABLISHED A <i>PRIMA FACIE</i> CASE OF AGE DISCRIMINATION, THE FOURTH CIR- CUIT PROPERLY FOCUSED ON THE ISSUE OF UNLAWFUL MOTIVATION, USING TRA- DITIONAL STANDARDS OF PROOF IN CIVIL CASES	5
II. THE <i>MCDONNELL DOUGLAS</i> FORMULA, EVEN AS MODIFIED BY CERTAIN COURTS, DOES NOT PROVIDE AN ACCEPTABLE ALTERNATIVE <i>PRIMA FACIE</i> CASE TEST IN ADEA DISCHARGE CASES	8
A. Application of the Third Part of the <i>McDonnell Douglas</i> Framework to ADEA Cases has Resulted in Conflicting and Confusing Opinions.....	13
B. A Rigid Application of the Fourth Part of the <i>McDonnell Douglas</i> Framework ("Still Searching") to ADEA Discharge Cases Has Been Largely Rejected	16
CONCLUSION	20

TABLE OF AUTHORITIES

	Page
CASES	
<i>Ackerman v. Diamond Shamrock Corp.</i> , 670 F.2d 66 (6th Cir. 1982).....	14
<i>Barnes v. Southwest Forest Industrial, Inc.</i> , 814 F.2d 607 (11th Cir. 1987).....	5
<i>Bashara v. Black Hills Corp.</i> , 26 F.3d 820 (8th Cir. 1994).....	18
<i>Bodenheimer v. PPG Indus., Inc.</i> , 5 F.3d 955 (5th Cir. 1993).....	5
<i>Branson v. Price River Coal Co.</i> , 853 F.2d 768 (10th Cir. 1988)	19
<i>Carter v. Duncan-Huggins, Ltd.</i> , 727 F.2d 1225 (D.C. Cir. 1984)	6
<i>Chipollini v. Spencer Gifts, Inc.</i> , 814 F.2d 893 (3rd Cir.), cert. dismissed, 483 U.S. 1052 (1987).....	14
<i>EEOC v. Western Electric Co.</i> , 713 F.2d 1011 (4th Cir. 1983)	19
<i>Furnco Construction Corp. v. Waters</i> , 438 U.S. 567 (1978)	9
<i>Hazen Paper Co. v. Biggins</i> , 113 S. Ct. 1701 (1993)	6
<i>Hedrick v. Hercules, Inc.</i> , 658 F.2d 1088 (5th Cir. 1981).....	6
<i>Holley v. Sanyo Manufacturing, Inc.</i> , 771 F.2d 1161 (8th Cir. 1985).....	17
<i>International Bro. of Teamsters v. United States</i> , 431 U.S. 324 (1977)	9, 12
<i>Karazanas v. Navistar Intern.</i> , 948 F.2d 332 (7th Cir. 1991).....	14

TABLE OF AUTHORITIES - Continued

	Page
<i>Kralman v. Illinois Dept. of Veterans' Affairs</i> , 23 F.3d 150 (7th Cir. 1994).....	11
<i>LaGrant v. Gulf & W. Manufacturing Co.</i> , 748 F.2d 1087 (6th Cir. 1984).....	6
<i>La Montagne v. American Convenience Products, Inc.</i> , 750 F.2d 1405 (7th Cir. 1984).....	18
<i>LeBlanc v. Great American Ins. Co.</i> , 6 F.3d 836 (1st Cir. 1993)	19
<i>Leichihman v. Pickwick Intern.</i> , 814 F.2d 1263 (8th Cir. 1987), cert. denied, 484 U.S. 858 (1987)	5, 10, 13, 17, 20
<i>Loeb v. Textron, Inc.</i> , 600 F.2d 1003 (1st Cir. 1979)	14
<i>Lucas v. Dover Corp.</i> , 857 F.2d 1397 (10th Cir. 1988) ..	10, 13
<i>Laugesen v. Anaconda Co.</i> , 510 F.2d 307 (6th Cir. 1975).....	9
<i>McDonnell Douglas v. Green</i> , 411 U.S. 792 (1973) <i>passim</i>	
<i>Mitchell v. Data General Corp.</i> , 12 F.3d 1310 (4th Cir. 1993).....	13
<i>Moore v. Eli Lilly & Co.</i> , 990 F.2d 812 (5th Cir. 1993)	14
<i>O'Connor v. Consolidated Coin Caterers Corp.</i> , 56 F.3d 542 (4th Cir. 1995).....	3, 5, 7, 15
<i>Oxman v. WLS-TV</i> , 846 F.2d 448 (7th Cir. 1988).....	10
<i>Pace v. Southern Ry. System</i> , 701 F.2d 1383 (11th Cir.), cert. denied, 464 U.S. 1018 (1983).....	14, 18
<i>Palucki v. Sears Roebuck & Co.</i> , 879 F.2d 1568 (7th Cir. 1989)	10

TABLE OF AUTHORITIES - Continued

	Page
<i>Pena v. Brattleboro Retreat</i> , 702 F.2d 322 (2nd Cir. 1983).....	14
<i>Rose v. Wells Fargo & Co.</i> , 902 F.2d 1417 (9th Cir. 1990).....	14, 17
<i>Rosenfield v. Wellington Leisure Products, Inc.</i> , 827 F.2d 1493 (11th Cir. 1987).....	14
<i>Simpson v. Midland-Ross Corp.</i> , 823 F.2d 937 (6th Cir. 1987)	17
<i>St. Mary's Honor Ctr. v. Hicks</i> , 113 S. Ct. 2742 (1993)	16
<i>Wallis v. J. R. Simplot Co.</i> , 26 F.3d 885 (9th Cir. 1994).....	13
<i>Watson v. Fort Worth Bank & Trust Co.</i> , 487 U.S. 977 (1988)	9
OTHER	
D. Shlei & P. Grossman, EMPLOYMENT DISCRIMINATION LAW, Chap. 36, "PROOF," p. 1291 (2d ed. 1983).....	7

INTERESTS OF AMICUS CURIAE

The National Retail Federation (NRF) is the world's largest trade association. Its membership includes the leading department, specialty, discount, mass merchandise, and independent stores, as well as 32 national and 50 state associations. The NRF's members represent an industry that encompasses over 1.4 million retail establishments in the United States, employs nearly 20 million people (one in five American workers), and registered sales of more than \$2.2 trillion in 1994.

The parties have consented to the filing of this brief.

Issues arising under the Age Discrimination in Employment Act, particularly when a reorganization, consolidation, or elimination of positions is involved, are of keen interest to the employing retailers because of the changes taking place within the retail industry. During the last several years various major retail and department store chains have reorganized, merged with one another, and eliminated duplicate or unprofitable facilities. The retailers' elimination of duplicate management structure, redundant staff, and facilities have led to complicated decisions involving personnel and employment actions. These changes and reorganizations have prompted and will continue to prompt, as the case below, claims of discrimination under the ADEA.

Additional concerns arise when it is asserted, as here by Petitioner, that an automatic presumption of illegal age discrimination arises simply because a "qualified" protected age worker is terminated and afterwards the work is performed by a younger worker. It is the experience of many retailers, when hiring to fill vacancies in

full-time sales and first level managerial positions in most areas of the country, that the applicant pool will be heavily populated by younger workers. Further, in assessing the qualifications and abilities of either employees or applicants, it is the experience of many retailers in today's environment that the younger person, due to educational and cultural differences, is much more likely to be literate and experienced in using computers to retrieve information. Such a worker gains quick access to extensive information systems data on inventory levels, pricing, cost, availability of merchandise, shipment dates, re-order information, etc., which enhances efficient and effective job performance in the retail industry.

SUMMARY OF ARGUMENT

In determining whether an employer was entitled to summary judgment in an ADEA disparate treatment discharge case, the Fourth Circuit properly used the traditional standards of proof applied in civil cases and focused upon the issue of unlawful motivation. In an ADEA case, as this Court has held, plaintiff's claim depends on whether age actually motivated the employer's decision.

Petitioner claims he established a *prima facie* case under this Court's *McDonnell Douglas* formula and that ADEA claimants in establishing a *prima facie* case should be relieved of the burden of making out a traditional circumstantial evidence case. However, strict use of the *McDonnell Douglas* formula in ADEA discharge cases is

inappropriate. A *prima facie* case of age discrimination is not established if plaintiff only shows that he was within the protected age group, that he had been performing his job for some time, and that his employment was terminated.

If the *McDonnell Douglas* framework is to be used, it must be appropriately modified to focus on whether plaintiff possesses sufficient evidence of disparate treatment of similarly-situated individuals on the basis of age to give rise to an inference of unlawful motivation or to show that the employer did not treat age neutrally in making personnel decisions. By appropriate modification to two parts of the original *McDonnell Douglas* framework, assessment of the discharged ADEA plaintiff's *prima facie* case can be squared with traditional analysis of proof in civil cases generally.

ARGUMENT

Petitioner ("O'Connor") brought suit claiming he was terminated by Respondent ("Consolidated") in violation of the Age Discrimination in Employment Act (ADEA), and requested a jury trial. (App. to Petition, p. 23). Consolidated moved for summary judgment because no genuine issues of fact existed and Consolidated was entitled to judgment as a matter of law. Granting Consolidated's motion, the District Court and Fourth Circuit found that O'Connor "failed to present any evidence that Consolidated did not treat age neutrally," and "O'Connor failed to establish . . . by direct and/or circumstantial evidence that he was terminated because of his age." *O'Connor v.*

Consolidated Coin Caterers Corp., 56 F.3d 542, 545, 546-49 (4th Cir. 1995).

In reviewing the decisions below, this Court has an important opportunity to clarify (1) the applicability of the standards of proof traditionally applied in civil cases to cases brought under the ADEA and (2) the applicability of the *McDonnell Douglas* framework to employment termination cases brought under the ADEA. Such clarification is critically important to employers in all industries, including the retail industry.

First, this Court should recognize that regardless of how the evidence in an ADEA case may be marshalled, an ADEA plaintiff, to survive summary judgment, must always come forward with sufficient evidence that a reasonable jury could infer that plaintiff's age actually motivated the employer's decision. As more fully explained below, this requirement is consistent with the traditional standards of proof in civil cases and should be applicable in all civil cases, including ADEA cases.

Second, this Court should clarify (1) whether the *McDonnell Douglas* framework applies at all in an ADEA discharge case, and (2) if it applies, how two key parts should be formulated. The NRF respectfully suggests that the *McDonnell Douglas* framework, even as modified by some courts, should not apply to ADEA discharge cases as they are significantly different from other employment discrimination cases. On the other hand, if this Court decides that the framework should apply, then the two key parts must be revised for ADEA discharge cases.

Finally, this Court should affirm the Fourth Circuit's decision because O'Connor failed to come forward with

evidence from which a reasonable jury could conclude age was a motivating factor in Consolidated's decision to terminate him.

I. IN ASSESSING WHETHER PLAINTIFF ESTABLISHED A *PRIMA FACIE* CASE OF AGE DISCRIMINATION, THE FOURTH CIRCUIT PROPERLY FOCUSED ON THE ISSUE OF UNLAWFUL MOTIVATION, USING TRADITIONAL STANDARDS OF PROOF IN CIVIL CASES.

To survive summary judgment, an ADEA plaintiff must present sufficient evidence that a reasonable jury could infer that age actually motivated the employer's decision. This requirement is consistent with the traditional standards of proof in civil cases and should be applicable in ADEA cases.

The application of this principal to ADEA cases is not new. In this case, the Fourth Circuit observed that courts must apply the "ordinary standards of proof used in civil cases" to assess whether a plaintiff is entitled to submit his case to the jury. 56 F.3d at 548. Other circuits also recognize that "a court considering summary judgment must decide whether plaintiff's facts, if believed, would prove that, more likely than not, the employer fired the employee because of his age." *Bodenheimer v. PPG Indus., Inc.*, 5 F.3d 955, 959 n.8 (5th Cir. 1993). Indeed, "[t]he standard for summary judgment mirrors that for directed verdict, so that if on any part of the *prima facie* case there would be insufficient evidence to require submission of the case to a jury, [the court] must affirm the grant of summary judgment." *Barnes v. Southwest Forest Indus., Inc.*, 814 F.2d 607, 609 (11th Cir. 1987); see *Leichman v.*

Pickwick Intern., 814 F.2d 1263, 1269 (8th Cir. 1987), *cert. denied*, 484 U.S. 858 (1987) ("In choosing an appropriate framework for a *prima facie* case in a particular factual context, it must be remembered that the ultimate issue in a disparate treatment case is whether the employer intentionally discriminated against the plaintiff"); *LaGrant v. Gulf & W. Mfg. Co.*, 748 F.2d 1087, 1090 (6th Cir. 1984) ("A *prima facie* case is one where there is sufficient evidence to withstand a motion for summary judgment or for a directed verdict"); *Hedrick v. Hercules, Inc.*, 658 F.2d 1088, 1094 (5th Cir. 1981) ("plaintiff in a reduction-in-force ADEA case could establish a *prima facie* case by . . . producing evidence, circumstantial or direct, from which a fact-finder might reasonably conclude that the employer intended to discriminate"); *see also Carter v. Duncan-Huggins, Ltd.*, 727 F.2d 1225, 1245 (D.C. Cir. 1984) (Scalia, J., dissenting) ("[I]n order to get to the jury the plaintiff would still have to introduce some evidence that would enable a reasonable person to conclude that the *bas* s for this discriminatory treatment was *race*.").

As this Court has recognized, liability in a disparate treatment case "depends on whether the protected trait (under the ADEA, age) actually motivated the employer's decision." *Hazen Paper Co. v. Biggins*, 113 S. Ct. 1701, 1706 (1993). Thus, the critical, essential element of plaintiff's ADEA case is illegal motivation, and "there is no disparate treatment when the factor motivating the employer is some feature other than the employee's age." *Id.* at 1705.

While a plaintiff's necessary proof may be based on direct evidence of discriminatory motive, plaintiffs in employment discrimination cases generally rely on -

indirect evidence from which an inference of discriminatory motive may be drawn, namely, comparative evidence demonstrating that the treatment of the plaintiff differs from that accorded to otherwise 'similarly situated' individuals who are not within the plaintiff's protected group.

D. Shlei & P. Grossman, *EMPLOYMENT DISCRIMINATION LAW*, Chap. 36, "PROOF," p. 1291 (2d ed. 1983). Accordingly, when assessing whether the ADEA plaintiff established a *prima facie* case of discriminatory motive by relying on circumstantial evidence, the courts must focus on the relative ages of the individuals who are favored and adversely affected by the personnel decisions as well as the demonstrated qualifications and job performance of the individuals involved.

The Fourth Circuit, in this case, properly recognized that "[i]n order to establish his claim, O'Connor may rely on the normal methods of succeeding on a civil suit by establishing by a preponderance of the evidence that but for Consolidated's motive to discriminate against him because of his age, he would not have been discharged." 56 F.3d at 545. In finding against O'Connor and entering summary judgment, the Fourth Circuit focused on all the various facts, including the relative ages of the individuals involved and the comparative background, experience, and job performance of O'Connor and those who remained at work. After properly assessing the evidence under ordinary standards of proof (as set forth above), the Fourth Circuit properly affirmed the District Court's entry of summary judgment in favor of Consolidated.

II. THE MCDONNELL DOUGLAS FORMULA, EVEN AS MODIFIED BY CERTAIN COURTS, DOES NOT PROVIDE AN ACCEPTABLE ALTERNATIVE PRIMA FACIE CASE TEST IN ADEA DISCHARGE CASES.

O'Connor claims he established a *prima facie* case under the framework which this Court used in *McDonnell Douglas v. Green*, 411 U.S. 792, 802 (1973), as modified by the courts in an ADEA discharge case. O'Connor claims ADEA complainants should be relieved from the "burden of making out a traditional circumstantial evidence case." (Pet. Br., p. 6). Thus, O'Connor raises questions of first impression concerning the role that *McDonnell Douglas* plays in assessing whether or when a plaintiff makes a *prima facie* ADEA case and whether this Court intended that the *McDonnell Douglas* framework impose a lesser standard in ADEA jury cases when compared to the traditional standards of proof in civil jury cases. The NRF respectfully submits that the original *McDonnell Douglas* framework should not be applied to ADEA discharge cases; instead, the traditional standards of proof for civil jury cases should apply.

When this Court first described the burden-shifting formula in *McDonnell Douglas*, it cautioned: "The facts necessarily will vary in Title VII cases, and the specification above of the *prima facie* proof requirement . . . is not necessarily applicable in every respect to differing factual situations." 411 U.S. at 802 n.13. Four years later, this Court emphasized that:

The importance of *McDonnell Douglas* lies, not in its specification of the discrete elements of proof

there required, but in its recognition of the general principles that any Title VII plaintiff must carry the initial burden of offering evidence adequate to create an inference that an employment decision was based upon a discriminatory criteria illegal under the Act.

International Bro. of Teamsters v. United States, 431 U.S. 324, 358 (1977).

NRF respectfully submits that the *McDonnell Douglas* formula was not initially intended to determine whether plaintiff made a *prima facie* case for a jury; nor was it intended to shift the focus, when applying standards used generally in assessing proof in civil cases, away from the essential elements necessary to establish discriminatory motivation. From the beginning, the Sixth Circuit recognized that age discrimination jury cases were different and it would be inappropriate to simply borrow and automatically apply the guidelines established in *McDonnell Douglas*. *Laugesen v. Anaconda Co.*, 510 F.2d 307, 312-13 (6th Cir. 1975).¹ The Eighth Circuit also

¹ The role of the court in the jury tried case is decidedly different than the court in the non-jury Title VII case as this Court has recognized on numerous occasions: "We have cautioned that these shifting burdens are meant only to aid courts and litigants in arranging the presentation of evidence: 'The ultimate burden of persuading the trier of fact the defendant intentionally discriminated against the plaintiff remains at all times with the plaintiff.'" *Watson v. Fort Worth Bank & Trust Co.*, 487 U.S. 977, 986 (1988); see also *Furnco Constr. Corp. v. Waters*, 438 U.S. 567, 577 (1978) ("The method suggested in *McDonnell Douglas* for pursuing this inquiry, however, was never intended to be rigid, mechanized, or ritualistic. Rather, it is merely a sensible, orderly way to evaluate the evidence in

observed that the *McDonnell Douglas* framework is simply a checklist which is helpful in determining whether a *prima facie* case of illegal motive based on circumstantial evidence has been established in the traditional sense and "any modification of the *prima facie* case described in *McDonnell Douglas* must still require the plaintiff to create an inference of a discriminatory reason for his termination." *Leichihman*, 814 F.2d at 1269-71.²

The Fourth, Seventh, and Tenth Circuits have concluded erroneously that an ADEA plaintiff may prove age discrimination in one of two alternate ways. *Oxman v. WLS-TV*, 846 F.2d 448, 452 (7th Cir. 1988); *Lucas v. Dover Corp.*, 857 F.2d 1397, 1400 (10th Cir. 1988). In this case, the Fourth Circuit observed that "O'Connor 'may meet [his] burden under the ordinary standards of proof by direct or indirect evidence relevant to and sufficiently probative of the issue [of motivation].' Alternatively, O'Connor may resort to the proof scheme articulated for Title VII cases in *McDonnell Douglas*." 56 F.3d at 545. Borrowing from earlier Fourth Circuit cases "under the *McDonnell Douglas*

light of common experience as it bears on the critical question of discrimination").

² That assessment is to be compared to Judge Posner's observation that:

the *McDonnell Douglas* "*prima facie* case" is not a "real" *prima facie* case, in the conventional sense of a case strong enough to withstand a defendant's motion for summary judgment, because it does not entitle the plaintiff to a trial. More properly termed a presumption, it is a device for making the defendant speak, and once he does speak it falls out.

Palucki v. Sears Roebuck & Co., 879 F.2d 1568, 1570 (7th Cir. 1989).

rubric" the Court below held that O'Connor must prove (1) he was in the protected age group, (2) he was discharged, (3) at the time of discharge, he was performing his job at a level that met his employer's legitimate expectations and (4) following his discharge, he was replaced by someone of comparable qualifications outside the protected class. 56 F.3d at 546.

As we show below, modification of the *McDonnell Douglas* framework in ADEA discharge cases has caused much confusion and conflict in the circuits. Whether the modified *McDonnell Douglas* framework offers ADEA plaintiffs a lesser burden than traditional circumstantial evidence analysis depends on whether the modification focuses on comparative treatment evidence.

The problem of applying the *McDonnell Douglas* framework to ADEA cases is best demonstrated by the confusing and conflicting results in the same types of case in different circuits and sometimes even within the same circuit. The Seventh Circuit has observed this very problem within its circuit:

The precedents in this circuit set forth several somewhat confusing variations of the elements required to establish a *prima facie* case of age discrimination. Some adaptation is inevitable given the various types of employment actions – i.e., hiring, demotions, discharges – that may be at issue in the same case. However, we have found variations even within a particular class of action.

Kralman v. Illinois Dept. of Veterans' Affairs, 23 F.3d 150, 153 (7th Cir. 1994). The most dramatic result of this confusion comes from another Seventh Circuit case

where, in detailing the "several important functions" which the *McDonnell Douglas* burden-shifting method of proof served, the Court stated:

Finally, and most important, in some cases, the method "allows victims of discrimination to prevail without presenting *any evidence* that age was a determining factor in the employer's motivation."

Oxman, 846 F.2d at 453 (emphasis added).

This confusion is readily apparent in ADEA employment termination cases. The *McDonnell Douglas* framework was designed to require a job applicant, as a part of his *prima facie* case to "demonstrate at least that his rejection did not result from the two most common legitimate reasons on which an employer might rely to reject a job applicant: an absolute or relative lack of qualifications or the absence of a vacancy in the job sought." *Teamsters*, 431 U.S. at 358 n.44. In the employment termination case crafting a revised *McDonnell Douglas* framework is much more complicated. An employee may be terminated, for example, because of unsatisfactory job performance, violation of a work rule regulating conduct, the elimination of his job, a more general reduction in force affecting a number of the same or similar jobs or the consolidation of jobs. Such complexities have caused the various modifications of *McDonnell Douglas* to move away from the focus on the most likely reason for termination to a focus on comparative treatment of similarly-situated individuals. However, this more refined approach, which moves closer to the traditional analysis, has resulted in different formulations of the two elements that are frequently contested: (1) whether the protected age plaintiff was

"qualified" or "satisfactorily performing his job" at the time of discharge (the Fourth Circuit "third prong"), and (2) whether plaintiff has established similarly-situated, substantially younger employees or employees outside the protected age group were treated differently (the "fourth prong").

A. Application of the Third Part of the *McDonnell Douglas* Framework to ADEA Cases Has Resulted in Conflicting and Confusing Opinions.

Looking first to cases interpreting the "qualified" element, most circuits have different requirements for ADEA discharge cases. The Fourth, Eighth, Ninth, and Tenth Circuits require the ADEA plaintiff to show that at the time of discharge he was performing his job at a level that met his employer's legitimate expectations or at least that he was doing satisfactory work. *E.g.*, *Mitchell v. Data General Corp.*, 12 F.3d 1310, 1315 (4th Cir. 1993); *Leichman*, 814 F.2d at 1268; *Wallis v. J. R. Simplot Co.*, 26 F.3d 885, 891 (9th Cir. 1994); *Lucas*, 857 F.2d at 1400. The Fourth Circuit below, as detailed above, and the Ninth Circuit emphasize the core "comparative treatment" analysis by adding a "qualification" requirement to the fourth prong similar to the original *McDonnell Douglas* fourth prong:

An employee may establish a *prima facie* case of age discrimination under the disparate treatment theory by showing he: (1) was a member of the protected class . . . ; (2) was performing his job in a satisfactory manner; (3) was discharged; and (4) was replaced by a substantially

younger employee with equal or inferior qualifications.

Rose v. Wells Fargo & Co., 902 F.2d 1417, 1421 (9th Cir. 1990) (emphasis added) (citing *Palmer v. United States*, 794 F.2d 534, 536-37 (9th Cir. 1986)). And the Seventh Circuit emphasizes that even though the employee performed satisfactorily in the past, the employee must show that he was meeting the expectations of the employer at the time of termination. *Karazanas v. Navistar Intern.*, 948 F.2d 332, 336 (7th Cir. 1991). The First Circuit employs the term "qualified," but in the sense that plaintiff "was doing his job well enough to rule out the possibility he was fired for inadequate job performance, absolutely or relative." *Loeb v. Textron, Inc.*, 600 F.2d 1003, 1013 (1st Cir. 1979).

On the other hand, in the Second, Third, Fifth, and Sixth Circuits, the courts have strictly adhered to the *McDonnell Douglas* formula and require only that the discharged plaintiff show he was "qualified for the position." E.g., *Pena v. Brattleboro Retreat*, 702 F.2d 322, 324 (2nd Cir. 1983); *Chipollini v. Spencer Gifts, Inc.*, 814 F.2d 893, 897 (3rd Cir.), cert. dismissed, 483 U.S. 1052 (1987); *Moore v. Eli Lilly & Co.*, 990 F.2d 812, 815 (5th Cir. 1993); *Ackerman v. Diamond Shamrock Corp.*, 670 F.2d 66, 69 (6th Cir. 1982).

In significant contrast, the Eleventh Circuit completely eliminates the requirement that plaintiff meet even the limited "qualified" prong when the plaintiff has been in the position from which he was discharged for some time. See *Pace v. Southern Ry. System*, 701 F.2d 1383, 1386 (11th Cir.), cert. denied, 464 U.S. 1018 (1983); *Rosenfield v. Wellington Leisure Prods., Inc.*, 827 F.2d 1493, 1495

n.2 (11th Cir. 1987) ("The reason for this modification is that in cases where plaintiff has held a position for a significant period of time, qualification for that position sufficient to satisfy the test of a *prima facie* case can be inferred."). Seemingly, not much at all is required if this modification is used.

Because the *McDonnell Douglas* formula is not easily adapted to the ADEA discharge cases, it should not be applied in those cases to displace traditional standards of proof. Assuming, however, that the *McDonnell Douglas* framework is applicable to ADEA discharge cases, this Court's resolution of the conflict over the formulation of the "qualified" or "satisfactory performance" element is critical in assessing the result below and proof in future ADEA cases. It is difficult to imagine that the focus of a court's inquiry regarding this third element would be on anything but the plaintiff's "performance" at the time of the adverse personnel action. The NRF urges this Court to adopt that focus.

Applying that focus to this case, the Fourth Circuit assessed that "O'Connor was not performing well in August of 1990" when he was terminated even though he had been in the job for some time. 56 F.3d at 547. Thus, the Fourth Circuit's assessment of the evidence under its modified *McDonnell Douglas* ADEA formula produces the same result as the Fourth Circuit's use of standard methods of assessing proof of illegal motivation. The NRF respectfully suggests that this Court clarify whether the *McDonnell Douglas* framework applies to ADEA cases, and if it does, the NRF urges this Court to focus part of the framework on plaintiff's performance at the time the discharge decision is made.

B. A Rigid Application of the Fourth Part of the McDonnell Douglas Framework ("Still Searching") to ADEA Discharge Cases Has Been Largely Rejected.

The Circuit Courts in ADEA discharge cases have generally rejected the "continues to search" fourth prong of *McDonnell Douglas* in favor of comparative treatment analysis. While such a step moves the modified *McDonnell Douglas* framework closer to the traditional analysis of proof of motivation, there is confusion regarding the weight that should be given to the relative ages of allegedly similarly-situated individuals.³

Although not argued below, both Petitioner and Amicus Equal Employment Opportunity Commission argue that there should be no focus upon the comparative characteristics of the plaintiff and other individuals selected by the employer to perform the work previously performed by plaintiff. (Pet. Br., p. 16). However, if a "real" *prima facie* case is to result, then comparative treatment of similarly-situated individuals is critical. For this reason all of the circuits have properly rejected such a limited formula because in effect, in the ADEA discharge case, it merely requires the plaintiff to show that he or she was in the protected age group and was then terminated.

³ The modified "fourth prong" has also been used in Title VII race discrimination discharge cases by the lower courts. See *St. Mary's Honor Ctr. v. Hicks*, 113 S. Ct. 2742, 2747 (1993) (citing the lower court decision there which characterized the fourth prong: "that the position remained open and was ultimately filled by a white man").

Focusing on the comparative ages of the involved individuals has also raised questions. The Sixth Circuit has observed:

The processing of age is a universal human process. In the very nature of the problem, it is apparent that in the usual case, absent any discriminatory intent, discharged employees will more often than not be replaced by those younger than they, for older employees are constantly moving out of the labor market, while younger ones move in. This factor of progression replacement is not necessarily involved in cases involving the immutable characteristics of race, sex and national origin.

510 F.2d at 312, n.4. The Eighth Circuit has rejected an "automatic presumption" of discrimination when a younger worker replaces an older worker. *Holley v. Sanyo Mfg., Inc.*, 771 F.2d 1161, 1167 (8th Cir. 1985) ("the fact alone that Holley's duties were assumed by a younger person – the fact of an age differential – itself is insufficient additional evidence to establish a *prima facie* case"); *Leichman*, 814 F.2d at 1270 ("In *Holley*, we agreed with the Sixth Circuit that the ADEA does not create "automatic presumption" against an employer whenever an older worker is replaced by a younger one.").

⁴ Where there is a delay in selecting a replacement, the fact the replacement is younger may not create a *prima facie* case and additional evidence may be required. *Rose v. Wells Fargo & Co.*, 902 F.2d at 1422 (many of the duties were assumed by a younger worker but some six or seven months later) (citing *Simpson v. Midland-Ross Corp.*, 823 F.2d 937, 941 (6th Cir. 1987) (younger replacement arrived three months later)).

The Seventh Circuit has recognized that:

It is not a violation of the ADEA to replace an employee in the protected class with a younger person, as long as the protected employee is not replaced because of his age. Because younger people often succeed to the jobs of other people for perfectly legitimate reasons, the mere fact that an older employee is replaced by a younger one does not permit an inference that the replacement was motivated by age discrimination.

La Montagne v. American Convenience Prods., Inc., 750 F.2d 1405, 1413 (7th Cir. 1984). Similarly, the Fifth Circuit looked to cases from other circuits and concluded:

We agree with the tenor of these cases in so far as they establish that replacement by one within the protected category will not *preclude* proof of a *prima facie* case. However, in no case does the court hold that as a matter of law a *prima facie* case is established if a plaintiff simply shows he is in the protected group, was adversely affected by an employment decision, was qualified, and was replaced by one younger than himself. In each of these cases not only was the plaintiff replaced by someone younger but there also was other evidence of discrimination based on age.

Pace v. Southern Ry. System, 701 F.2d 1383, 1390 (5th Cir. 1983).

In reduction-in-force cases where there is no replacement (as plaintiff's job is simply eliminated), the Courts have required plaintiffs to satisfy the fourth prong by other evidence from which an inference of discriminatory intent can be drawn. *E.g.*, *Bashara v. Black Hills Corp.*, 26

F.3d 820, 823 (8th Cir. 1994) (to establish a *prima facie* case in a reduction-of-force situation, the plaintiff must meet the first three requirements and " 'must come forward with additional . . . evidence that age was a factor in his termination.' "); *LeBlanc v. Great American Ins. Co.*, 6 F.3d 836, 842 (1st Cir. 1993) (in a reduction in force case to satisfy element (4), the plaintiff may demonstrate either that the employer did not treat age neutrally or that younger persons were retained in the same position); *Branson v. Price River Coal Co.*, 853 F.2d 768, 771 (10th Cir. 1988) (in reduction-in-force cases, courts have modified the fourth *prima facie* element by requiring the plaintiff to produce evidence, circumstantial or direct, from which a fact-finder might reasonably conclude that the employer intended to discriminate in reaching the decision at issue); *EEOC v. Western Electric Co.*, 713 F.2d 1011, 1014 (4th Cir. 1983) (the fourth element in a reduction-in-force modified formula is usually characterized by stating that a plaintiff must produce "some other evidence that the employer did not treat age neutrally").

If some modified *McDonnell Douglas* framework is applicable to ADEA cases, this Court's clarification of the showing an ADEA plaintiff must make under the fourth part of the test is crucial to the result below and future ADEA cases. Simply requiring an ADEA plaintiff to demonstrate that he was replaced by someone younger (perhaps only six months younger) hardly demonstrates age animus on the part of an employer. On the other hand, requiring plaintiff to show that he was replaced by an individual outside the protected class creates a more direct tie to the possibility that age may have been a determining factor in the employment decision.

At least, any modified *McDonnell Douglas* fourth prong should focus in all ADEA discharge cases upon a formulation borrowed from the reduction-in-force cases where comparative treatment evidence was necessarily limited. Accordingly, an ADEA protected group plaintiff could meet this fourth prong by producing other evidence from which it can be reasonably inferred that the employer intended to discriminate against the plaintiff because of his age or did not treat age neutrally in its decision-making process. This general requirement is necessary because, as the Eighth Circuit has observed:

A *prima facie* case, although a minimal showing, at least requires the plaintiff to show that the employer's actions were more likely than not based on a consideration of impermissible factors.

Leichihman, 814 F.2d at 1270. Such a modification of the fourth prong squares the *McDonnell Douglas* framework with traditional analysis of proof in civil cases. If this fourth prong test is adopted, the Fourth Circuit's decision should be affirmed, as the courts below found that O'Connor failed to supply the necessary evidence.

CONCLUSION

For the reasons set forth above, in deciding Consolidated's motion for summary judgment, the Fourth Circuit properly focused on traditional methods of proof in civil cases. Petitioner's claim that he should only be required to satisfy a lesser burden under the original *McDonnell*

Douglas framework should be rejected. Attempts at modification of the *McDonnell Douglas* formula in ADEA discharge cases has caused conflicting and confusing interpretations. If a modified *McDonnell Douglas* formulation is to be used, the focus must be on the comparative treatment of similarly-situated individuals. Only by such evidence can a plaintiff establish a *prima facie* case from which a reasonable fact-finder might infer that the employer acted with the improper motive of discriminating against the plaintiff because of his age or failed to treat age neutrally in its employment decisions.

Respectfully submitted,

JACK L. WHITACRE
DENISE DRAKE CLEMOW
SPENCER FANE BRITT & BROWNE
1400 Commerce Bank Building
1000 Walnut
Kansas City, MO 64106
(816) 474-8100